

****21.08.2023****

****Sanction – Cross-Border Processing****

The National Authority for the Supervision of Personal Data Processing completed, in July of the current year, an investigation into the operator UiPath SRL and found violations of the provisions of Article 25 and Article 32 of Regulation (EU) 679/2016. In this case, considering that the headquarters of UiPath SRL is in Romania, the National Authority for the Supervision of Personal Data Processing acted as the supervisory authority of the operator's main establishment, competent to act as the lead authority for the cross-border processing carried out by UiPath SRL in accordance with the procedure provided for in Article 60 of Regulation (EU) 679/2016.

The investigation was initiated following the operator's notification of a personal data security breach under the General Data Protection Regulation. Thus, UiPath SRL notified a breach of the confidentiality of personal data, consisting of the publication of personal data of a significant number of users of the Academy Platform on a website accessible at a URL address.

During the investigation, the National Authority for the Supervision of Personal Data Processing found that UiPath SRL had not implemented appropriate technical and organizational measures to ensure that, by default, personal data is not accessible, without the intervention of the individual, to an unlimited number of persons, including the ability to ensure the confidentiality and ongoing resilience of processing systems and services, as well as a process for testing, evaluating, and periodically assessing the effectiveness of technical and organizational measures to guarantee the security of processing.

This fact led to the unauthorized disclosure and unauthorized access to personal data (user's first and last name, unique identifier of each user, email address, name of the company where the user is employed, country, and details about the level of knowledge obtained in the UiPath ACADEMY courses) of approximately 600,000 users of the Academy Platform belonging to the operator UiPath, for a period of about 10 days.

The National Authority for the Supervision of Personal Data Processing considered that this breach of personal data processing is likely to cause physical, material, or moral harm to the data subjects, such as loss of control over their personal data or loss of confidentiality of personal data.

The National Authority for the Supervision assessed that the circumstances of the aforementioned case present a degree of severity that necessitates the imposition of a fine against the operator. The case was analyzed in terms of the criteria for individualizing fines provided for in Article 83 paragraphs (2) and (3) of the GDPR, particularly those relating to:

1. the nature, severity, and duration of the infringement – affecting 600,000 data subjects (users of the Academy Platform);
2. the technical settings of the storage space allowed unauthorized access to the personal data of the users of the Academy Platform;
3. the incident consisted of the publication of personal data on a third-party website, information brought to the operator's attention by a third party;
4. the negligent nature of the operator's fault in this case;
5. the remedial measures taken by the operator during the investigation conducted by ANSPDCP;
6. the degree of cooperation with the supervisory authority;
7. the categories of personal data processed (user's first and last name associated with the Academy Platform account, username, unique identifier of each user, email address, name of the company where the user is employed, country, and details about the level of knowledge obtained in the UiPath ACADEMY courses).

Following the investigation, the National Authority for the Supervision informed the other involved supervisory authorities, within an informal consultation procedure based on Article 60 of Regulation (EU) 2016/679, regarding the conclusions resulting from the investigations conducted in this cross-border impact case and the proposed measures.

Considering that UiPath SRL carried out cross-border processing, the provisions of Article 60 of Regulation (EU) 679/2016 were applied, as well as those of Article 16 paragraphs (3), (5), (6), (7) of

Law no. 102/2005, republished, which provide for the application of sanctions/corrective measures by decision of the president of ANSPDCP, based on the minutes of findings and the control report. As such, UiPath SRL was sanctioned with a fine in the amount of 346,598 lei, equivalent to the sum of 70,000 EURO.

At the same time, under Article 58 paragraph (2) letter d) of Regulation (EU) 2016/679, the supervisory authority ordered the operator to implement a procedural mechanism and apply it at regular intervals regarding the testing, evaluation, and periodic assessment of the effectiveness of the measures adopted, taking into account the risks presented by the processing, in order to ensure an appropriate level of security and to avoid similar security incidents in the future.

****Legal and Communication Directorate****

****A.N.S.P.D.C.P.****